		to enforce their inspection rights, section 1603 specifically states in granting the director's request the superior court may impose "just and proper conditions" on its order. The *Havlicek* court relied on this language as the basis for the authority to impose conditions, such as a protective order. Here, section 17704.10 does not include any language supporting the imposition of a protective order. Section 17704.10, subdivision (f), is the statutory provision that allows a member to bring a court case to enforce their inspection rights. That subdivision provides, "In addition to the remedies provided in Sections 17713.06 and 17713.07 and any other remedies, a court of competent jurisdiction may enforce the duty of making and mailing or delivering the information and financial statements required by this section and, for good cause shown, extend the time therefor." Nothing in this language authorizes the court to impose conditions. Moreover, Respondents have not convinced the court of the need for a protective order. Accordingly, Respondents' request for a protective order is **DENIED**, but Petitioner is cautioned that the misuse of the documents and information he obtains may subject him to liability for any damages or injuries he might cause. Finally, Petitioner's request for fees and costs is **DENIED**. Section 17704.10, subdivision (g), authorizes a court to award reasonable expenses and attorney fees if the court finds the failure of the limited liability company to comply with the requirements of Section 17704.10 is without justification. Here, Petitioner is self-represented and therefore has not incurred any attorney fees. Petitioner also has not presented any evidence or specific request for any expenses or costs. Moreover, the court finds there was a legitimate dispute about the access to the records given there was no specific authority on point regarding this specific statute. Based on the foregoing, Respondent is ordered to produce copies of the records governed by section 17704.10, subdivision (a), and provide Petitioner access during normal business hours to the records governed by section 17704.10, subdivision (b), within 15 days of this ruling. Petitioner is ordered to give notice of this ruling.
8.	**City of Orange v. Leon** 2008-00114884	**CONTINUED TO JUNE 25, 2026,** as stated in the June 15, 2026 minute order

9.	**State Farm General Insurance Company vs. Lambert** 2012-00584705	Before the court is the motion of defendants Kelly Michelle VanSchaack and James Nathan VanSchaack (collectively, Defendants) to vacate void judgment. As more fully set forth below, the motion is **DENIED WITHOUT PREJUDICE**. By this motion, Defendants seek to vacate the default judgment entered against them on May 24, 2013, and renewed on May 5, 2023. Defendants bring this motion under Code of Civil Procedure section 473, subdivision (d), claiming the judgment is void because they were never properly served with summons and complaint and only became aware of the case years later after judgment was entered. The motion, however, is defective in at least two ways. First, the proof of service showing the motion was allegedly served on plaintiff State Farm General Insurance Company (Plaintiff) is defective and Plaintiff has not filed any opposition to demonstrate it actually received the motion or otherwise waived the service defect on the motion. The proof of service is defective because it is signed by defendant Kelly Michelle VanSchaack. Service must be made by and the proof of service signed by a person who is not a party to the action. (See, e.g., Code Civil Proc., § 1013a(3).) The proof of service attached to the motion recognizes this requirement by stating the person signing it is "not a party to this action." That statement, however, is clearly false in this case. Moreover, the proof of service purports to be by mail pursuant to ordinary business practices, but the proof lacks many of the statements required by Code of Civil Procedure section 1013a(3) for a valid proof of service pursuant to ordinary business practices. Indeed, section 1013a(3) sets forth several statements that must be included in a valid proof of service and many of them are lacking. To the extent the declarant personally deposited the document in the mail, a different form of proof of service is required. Second, Defendants fail to demonstrate this motion is timely. Defendants claim the judgment in this action is void based on extrinsic evidence—i.e., their declarations stating the addresses lists on the proofs of service are not valid and denying they ever received the summons and complaint—rather than void on its face. The Supreme Court recently did away with the requirement that such a motion must be brought within two years, but the Supreme Court left undisturbed that a defendant seeking such relief must still act with reasonable diligence upon learning of the judgment. (*California Capital Ins. Co. v. Hoehn* (2024)